

**IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF NEW YORK**

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SAMANTHA CORBIN and ROBIN WILSON

Plaintiff,

- against -

THE CITY OF NEW YORK, a municipal entity,
NEW YORK CITY POLICE OFFICER ALAN
SCHLISSEL, NEW YORK CITY POLICE
CAPTAIN CHRISTOPHER MCCORMACK,
and NEW YORK CITY POLICE OFFICERS
"JOHN DOES" 1-9.

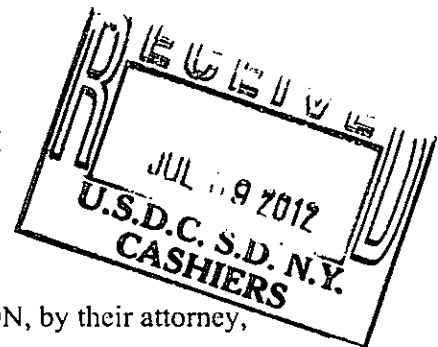
Defendants.
-----X

COMPLAINT

**INDEX # 12CV02305(PAC)
ECF CASE**

JURY TRIAL DEMANDED

**FIRST
AMENDED COMPLAINT**



Plaintiffs SAMANTHA CORBIN and ROBIN WILSON, by their attorney,

DAVID A. THOMPSON, of STECKLOW COHEN & THOMPSON, complaining of the
defendants, respectfully allege as follows:

I. PRELIMINARY STATEMENT

1. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON bring this action
for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §
1983 and 42 U.S.C. § 1988 for violations of their civil rights, as said rights are secured by
said statutes and by the Constitutions of the State of New York and of the United States.

2. On June 2, 2011, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON
met with approximately thirteen other individuals in order to engage in a protest against
the political activities of right-wing billionaire David H. Koch. The plaintiffs believe that
it is inherently unfair and un-American that one man – by virtue of his astounding wealth

– can so magnify his voice that it overwhelms the voices of millions of ordinary Americans. Especially when the policies David H. Koch wants to push forward include the abolishment of Social Security, welfare, and minimum wage laws which protect ordinary Americans poverty and despair.

3. Even before the plaintiffs could begin their protest, they were approached in Central Park by a Captain of the New York Police Department, defendant Christopher McCormack who told the plaintiffs they were not allowed to speak – despite the fact that the Plaintiffs were breaking no laws. Defendant McCormack, together with defendant Police Officer Alan Schlissel and several defendant Police Officers John Doe followed the plaintiffs for several blocks to Lincoln Center where the plaintiffs planned to protest in front of the theater named for David H. Koch.

4. The plaintiffs engaged in a brief protest of approximately ten to fifteen minutes while Defendant McCormack, defendant Police Officer Alan Schlissel and several defendant Police Officers John Doe looked on. The plaintiffs followed all instructions by these officers while doing so. After the plaintiffs terminated their action, and while they were leaving the area, the defendant officers placed plaintiffs under arrest. Although charged with a mere violation, disorderly conduct, the plaintiffs were held in custody overnight in retaliation for the plaintiffs' expression of their political views.

5. Unfortunately, the New York City Police Department (the "NYPD") has a well-established practice of targeting for unlawful arrest citizens who speak out—especially those speaking out for left-of-center views. The NYPD treats law-abiding protestors as criminals, monitors their activities, and subjects them to punitive and

retaliatory arrest. The present case is just one more outrageous example of this unconstitutional policy.

6. The plaintiffs file this action to reclaim their right to participate in the political process by speaking out on the issues that will determine the future of this country.

II. JURISDICTION

7. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343(3) and (4) and the aforementioned statutory and constitutional provisions.

8. Plaintiffs further invoke this Court's supplemental jurisdiction, pursuant to 28 USC. § 1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that gives rise to the federally based claims and causes of action.

III. VENUE

9. Venue is proper for the United States District Court for the Southern District of New York, pursuant to 28 U.S.C. § 1391(a), (b), and (c) and § 1402(b) because the claims arose in this district.

IV. JURY DEMAND

10. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

V. THE PARTIES

11. The Plaintiff SAMANTHA CORBIN is an American citizen and is currently a resident of the City and State of New York, in the County of Kings.

12. The Plaintiff ROBIN WILSON is an American citizen and is currently a resident of the City of Converse and State of Texas, in the County of Bexar.

13. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York. Defendant THE CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

14. At all times relevant to this action, the individually named New York City Police Department Captain Christopher McCormack was a duly sworn police officer of said department and was acting under the supervision of said department and according to their official duties. Upon information and belief, since the events at issue in this case, Captain Christopher McCormack has been promoted to the rank of Deputy Inspector.

15. At all times relevant to this action, the individually named New York City Police Department Police Officer Alan Schlissel was a duly sworn police officer of said department and was acting under the supervision of said department and according to their official duties.

16. At all times hereinafter mentioned, the Defendant NYPD POLICE OFFICERS JOHN DOES 1-9 were duly sworn police officers of said department and

were acting under the supervision of said department and according to their official duties.

17. At all times relevant to this action, the Defendants Captain Christopher McCormack, Police Officer Alan Schlissel and New York City Police Department POLICE OFFICERS JOHN DOES 1-9 (collectively, "Defendant Police Officers") either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

18. Each and all of the acts of the Defendant Police Officers alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

19. At least thirty days have elapsed since the demand, claim or claims upon which this action is founded were presented to a director or officer of THE CITY OF NEW YORK and the CITY has neglected or refused to make an adjustment or payment thereof for thirty days after such presentment.

VI. FACTS COMMON TO ALL CLAIMS

A. POLICE HARRASSMENT AND WRONGFUL ARREST OF THE PLAINTIFFS

20. The plaintiffs, together with approximately a dozen like-minded citizens, met inside Central Park near 64th Street during the mid-afternoon of June 2, 2011.

21. The plaintiffs and the others meeting with them joined together for the purpose of going to Lincoln Center to protest the activities of right-wing billionaire David H. Koch, who had recently paid to have his name emblazoned on the former New York State Theater at Lincoln Center.

22. The plaintiffs believed that it was their responsibility to speak out against David H. Koch's criminality, greed, and undue influence over American political life.

23. David H. Koch uses a fleet of political action committees, advisors, and corporations, backed by billions of dollars, to put his personal concerns front and center on the national stage.

24. Opposing him, the plaintiffs had only the power of their human voices and their willingness to try to be heard.

25. When the plaintiffs and their co-protestors, totaling approximately 15 people, gathered inside Central Park, they were approached by a Captain of the NYPD, Captain Christopher McCormack.

26. Upon information and belief, at all relevant times, Captain McCormack was commanding officer of the NYPD's 20th Precinct on the Upper West Side.

27. Upon information and belief, Captain McCormack was outside his precinct's jurisdiction when he approached the plaintiffs.

28. Upon information and belief, Captain McCormack had been monitoring the plaintiffs' activities before they gathered in the park that day.

29. Upon information and belief, Captain McCormack left his jurisdiction and sought out the plaintiffs for the express purpose of stifling the plaintiffs' efforts to engage in political speech.

30. Captain McCormack was accompanied by two or more unidentified police officers.

31. Captain McCormack told the plaintiffs, in sum and substance, that their group was not permitted to assemble inside the park.

32. Captain McCormack told the plaintiffs, in sum and substance, that if they did not disperse they would be arrested.

33. Upon information and belief, Park regulations require a permit only for assemblies of more than 20 people.

34. The plaintiffs and their group did not possess any amplified sound devices, chairs, tables, tents, or other equipment.

35. They did not attempt to occupy or reserve any part of the park to the exclusion of others.

36. Captain McCormack's order and threat of arrest were not justified by any park regulation.

37. Captain McCormack's order and threat of arrest were not justified by any NYPD rule or regulation.

38. Captain McCormack's order and threat of arrest were not justified by any law of the State of New York.

39. Upon information and belief, Central Park receives approximately 38 million visitors a year.

40. Upon information and belief, according to the Central Park Conservancy, on a "typical weekday" in the summer, the park receives 160,000 visitors per day.

41. Upon information and belief, on June 2, 2011, the weather was extremely pleasant: Bill Evans, Weatherperson for WABS TV described that day's weather as follows: "It doesn't get much better than this for weather in the NYC area! Gorgeous

sunshine, breezy cool NW wind, highs in the 70s! Perfect!”¹ Accordingly, the park was frequented by many thousands of people that afternoon.

42. Upon information and belief, at the time Captain McCormack ordered the plaintiffs and their group to disperse, there were many, many people in Central Park other than the plaintiffs.

43. However, among all the tens of thousands of people in Central Park that afternoon, Captain McCormack threatened to arrest the small handful of people who met in the park in order to later engage in First-Amendment-protected speech.

44. Members of the group reminded Captain McCormack and the other officers that no law or regulation required them to disperse or to leave the area.

45. However, Captain McCormack continued to order the group to disperse and leave.

46. Although not required to do so by law, the plaintiffs and their group separated into two groups and proceeded to Columbus Circle.

47. The plaintiffs and the majority of those who originally met up inside Central Park near 64th Street met one another again at Columbus Circle.

48. After approximately five minutes, the group was once again approached by police officers.

49. Upon information and belief, one of these officers was Police Officer Alan Schlissel.

50. Police Officer Schlissel told the group they had to leave the area.

¹ Evans, Bill, “It Doesn’t Get Much Better Than This for Weather in the NYC Area! Gorgeous Sunshine, Breezy Cool NW Wind, Highs in the 70s! Perfect!,” WABC TV, June 2, 2011.

51. Once again, members of the group reminded the officer that a group of 15 people does not need police permission to assemble.

52. However, Police Officer Schlissel was insistent that the group could not remain in the area.

53. Rather than confront the officer over his unconstitutional order, the plaintiffs and their group left Columbus Circle.

54. The plaintiffs and their group proceeded in single file, to ensure that they did not block the sidewalk to other pedestrians.

55. Police Officer Schlissel rode his bicycle on the sidewalk near the group as it proceeded towards Lincoln Center.

56. The plaintiffs and their group proceeded in this manner to the sidewalk in front of Lincoln Center, on the Columbus Avenue side of the complex, where the David H. Koch Theater is located.

57. Specifically, the plaintiffs and their group located themselves on the broad sidewalk in front of the massive stairs leading into the Lincoln Center complex.

58. Upon information and belief, the sidewalk in front of Lincoln Center is approximately the same width as two lanes of road traffic on Columbus Avenue.

59. Upon information and belief, the sidewalk in front of Lincoln Center is approximately 20 to 24 feet in span from the curb to the steps leading up to Lincoln Center itself.

60. Upon information and belief, there are no trees and little or no street furniture on the sidewalk, with the result that the full width of the sidewalk is available for pedestrian traffic.

61. When the group arrived at the location, they remained in single file, leaving the vast majority of the sidewalk completely free and clear for other pedestrian traffic.

62. Upon information and belief, the stairs that provide access from the sidewalk to the Lincoln Center complex are approximately 140 feet wide.

63. When the group of approximately 15 people gathered at the location, they did not block access to the stairs leading into the Lincoln Center Complex.

64. The plaintiffs and the group moved in single file singing their song that denounced the political activities of billionaire David H. Koch.

65. The plaintiffs and the group used their own unamplified voices, with no musical instruments, in singing the song.

66. Approximately two members of the group passed out leaflets to citizens who approached the group to learn more about their message.

67. During this time, Officer McCormack, Officer Schlissel, and other NYPD officers positioned themselves on the steps leading up to the Lincoln Center complex.

68. Captain McCormack instructed the group, in sum and substance, not to stand still on the sidewalk.

69. The plaintiffs and the group complied.

70. Captain McCormack instructed the group, in sum and substance, not to position themselves in close proximity to one another while they moved.

71. The plaintiffs and the group complied.

72. The plaintiffs and their group conducted their protest under the watchful eyes of Captain McCormack, Officer Schlissel, and other NYPD officers for approximately 15 minutes.

73. After this period of time, the plaintiffs and the group decided to terminate their speech activity and depart from the location.

74. The plaintiffs and their group stopped singing.

75. The plaintiffs moved to the portion of the sidewalk adjacent to the crosswalk in order to cross Columbus Avenue.

76. The plaintiffs waited for the light to permit them to cross Columbus Avenue.

77. When the light permitted it, the plaintiffs began to cross.

78. As plaintiff Samantha Corbin crossed the street she was grabbed from behind by Captain McCormack.

79. Captain McCormack pushed plaintiff Samantha Corbin to the ground.

80. Captain McCormack ordered other officers present to place plaintiff Samantha Corbin in a police car.

81. Captain McCormack then ordered other officers present to “get” plaintiff Robin Wilson and a non-party third member of the group.

82. One of the officers present cuffed plaintiff Samantha Corbin.

83. Plaintiff Robin Wilson was crossing the street when she was seized and handcuffed by another officer.

84. The plaintiffs were placed in a police car.

85. The plaintiffs were taken to a police precinct.

86. Upon information and belief, the plaintiffs were taken to the 20th Precinct.

87. The plaintiffs were held at the precinct for many hours.

88. In total, the plaintiffs were in custody almost 20 hours.

89. The plaintiffs were arraigned on charges of disorderly conduct under Penal Law 240.20(5) and 240.20(6).

90. Police Officer Alan Schlissel swore out the charging affidavit, which stated:

Deponent states that deponent observed defendant Corbin and defendant Wilson with approximately 12 other unapprehended individuals and one separately charged defendant ... and observed that all 15 individuals were standing next to each other, forming a line in front of the above described address. Deponent further states that deponent observed numerous people walk around the 15 individuals to enter and exit Lincoln Plaza.

91. This sworn allegation was false.

92. Police Officer Alan Schlissel swore that the plaintiffs refused to comply with a lawful order of the police to disperse.

93. This sworn allegation was false.

94. Police Officer Alan Schlissel swore that "deponent and other officers told the defendants and 13 other individuals to leave the area numerous times, and the defendants and other individuals refused to leave the area."

95. This sworn allegation was false.

96. Other than these sworn false allegations, the affidavit of Police Officer Alan Schlissel provided no basis for the charges filed against the plaintiffs.

97. Police Officer Alan Schlissel provided this falsely sworn affidavit despite knowing that his sworn statements were false.

98. As a result of these false statements, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were required to retain counsel.

99. As a result of these false statements, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were required to appear in court.

100. These false charges against Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were ultimately dismissed, but only after counsel for plaintiffs filed motions seeking dismissal and other relief.

B. NEW YORK CITY AND THE NYPD HAVE AN ESTABLISHED PRACTICE OF TARGETING PUBLIC EXPRESSION OF LEFT-OF-CENTER POLITICAL VIEWS

101. The NYPD has repeatedly used its enforcement powers selectively and illegally to infringe the political rights of people and organizations espousing left-of-center views.

102. As reported by Metro Focus, a program affiliated with public television station WNET, the NYPD has done its best to prevent protest by the people of this city and this nation concerning issues of the most vital national importance.

103. For example, the NYPD placed a chokehold on protest in the period when this country was debating (or trying to debate) possible war with Iraq:

In Feb. 2003, on the eve of the U.S. invasion of Iraq, the NYPD denied the group United For Peace and Justice a permit to march. The group held a stationary rally near the United Nations. The rally attracted more than 100,000 people, according to the same NYCLU report. In an effort to regulate the demonstration, the NYPD closed off streets and sidewalks leading to the event and used pens to confine demonstrators. The result of these efforts at tight control was that hundreds of thousands of people spilled into the streets, unable to access the demonstration area because of the areas that were blocked off. In the end, police on horseback and police wielding pepper spray attacked demonstrators. Dozens were injured, 350 people were arrested, mostly on disorderly conduct charges, and hundreds

of thousands of people were prevented from exercising their right to protest.²

104. This war, of course, was championed by Republicans and conservatives, and opposed by those left of center.

105. The following year the Republican party held its national convention in New York City.

106. Multitudes of citizens who would never be heard inside the convention wished to be heard outside of it.

107. These citizens attempted to exercise their First Amendment rights and were hindered and harassed, arrested and imprisoned, by the NYPD.

108. As Metro Focus reported:

Similar problems emerged in 2004, during the Republican National Convention, which was held in New York City. The NYPD denied permits to protest in Central Park and other traditional protest locations. At those peaceful demonstrations that were permitted, police arrested nearly 1,200 people, many for disorderly conduct. The Manhattan district attorney dropped nearly all of the charges within a year of the demonstration, suggesting that the arrests were used in fact more to reign in the protesters than to prevent crime.³

109. The NYPD does not limit itself to stifling massive protests.

110. The NYPD also stifles protests composed of just a few souls and citizens seeking to be heard.

111. The NYPD especially stifles such protests when they target right-wing magnates with money to spend in order to buy influence.

² Vitale, Alex, "Op-Ed: Disorderly Conduct? How Protesting Became a Crime in NYC?," Metro Focus, October 26, 2011.

³ Vitale, Alex, "Op-Ed: Disorderly Conduct? How Protesting Became a Crime in NYC?," Metro Focus, October 26, 2011.

112. On September 21, 2009, three members of a political action group called the Yes Men stood in front of the News Corp building handing out leaflets.

113. The leaflets took the form of a parody issue of the New York Post, a News Corp. publication. The leaflets spoke about the issue of climate change, and also satirized the New York Post's denial that such a phenomenon existed.

114. The protestors handed one copy of this leaflet to News Corp. magnate Rupert Murdoch as he entered the building.

115. After that the NYPD began shutting down the Yes Men's speech activities.

116. As AOL's Daily Finance reported, prior to giving a copy to Mr. Murdoch, the protestors had "handed out hundreds of copies over three hours with no trouble."

117. However:

that changed sometime after 7:30 a.m., when [the] volunteers succeeded in placing a paper into the hand of News Corp. chairman Rupert Murdoch as he entered the building. Shortly after that, says [a volunteer], two police officers who had been observing from a patrol car parked nearby approached [the volunteer] and instructed her to stop what she was doing. "They were like, 'These are not the real New York Post. This is a forgery. You could be in big trouble,'" [the volunteer], recalls. "They said we couldn't leave until the New York Post officials came to prove that that we had fraudulent papers." The officers took possession of several bundles of papers -- as the photo below, taken by photographer Jason Nicholas, shows -- and refused to allow passersby to take any more copies, says [the volunteer]. After about 20 minutes, [the volunteer] says, the police told the volunteers they could leave. A spokesman in the police department's public information office, Detective Joseph Cavitolo, disputed some details of [the volunteer]'s account. "Nobody was detained," Cavitolo says. "They were spoken to." He also insisted that the volunteers' newspapers weren't confiscated, but merely moved off the sidewalk, where they were blocking foot traffic. "Nobody took any papers," he says. Cavitolo could not say what had become of them.⁴

⁴ Bereovici, Jeff, "Did News Corp. and the NYPD block protesters' free speech?," Daily Finance, Sept. 22, 2009.

118. From this report it is clear that the NYPD were “observing from a patrol car” prior from the beginning of the protest. The NYPD treated these activists’ exercise of their First Amendment rights as an incipient crime scene – monitoring the three activists on the assumption that some excuse to arrest them would arise.

119. The report also shows the officers groping from some possible reason to arrest and process these political speakers (forgery of a newspaper?), without any regard for the law.

120. The report also shows the NYPD’s willingness to lie to cover its own lawbreaking: while a published photo shows the police illegally confiscating leaflets, a detective says that didn’t happen.

121. The NYPD actually profited from its alliance with News Corp, to the tune of more than \$100,000 (the exact amount given was not made public) donated by News Corp. to the New York City Police Foundation during the same period.

122. According to the New York City Police Foundation website: “The New York City Police Foundation is the only organization authorized to raise funds on behalf of the New York City Police Department.”

123. In other words, this money was solicited by and paid to the NYPD.

124. In addition, the NYPD has shown consistent a long-standing willingness to defy clearly-established constitutional rights affecting citizens’ freedom of movement, assembly, and use of the streets and sidewalks for lawful purposes.

125. As Judge Shira Scheindlin explained in Casale v. Kelly, 710 F. Supp. 2d 347 (S.D.N.Y. 2010):

The City of New York, operating principally through the New York City Police Department, has continuously enforced three unconstitutional loitering statutes for

decades following judicial invalidation of those laws and despite numerous court orders to the contrary. While arrests, summonses, and prosecutions under the void statutes generally have diminished over time, the City's description of its anti-enforcement efforts as "reasonably diligent and energetic" simply does not comport with reality.

126. The NYPD's practice of conducting surveillance on political demonstrators is also well documented.

127. The New York Civil Liberties Union documented the NYPD's illegal and indiscriminate video and camera surveillance of peaceful demonstrators during the Republican National Convention, describing:

blanket videotaping of tens of thousands of peaceful demonstrators. The video surveillance campaign, which was massive in scope, employed state-of-the-art technology that was touted in a promotional brochure published by one of the private security companies hired by the city: "Teamed with local dealer/installer, Total Recall Corporation (TRC), Pelco helped TRC blanket the city with video. The convention was held at Madison Square Garden, but there were many venues around the city to secure ... The high zoom capabilities of the Spectra and Esprit camera positioning units were also used very efficiently at the convention. Cameras mounted to blimps and helicopters fed live video back to the command center, via wireless technologies [providing] a true eagle-eye view of the city. From above the city's tallest buildings the cameras could be zoomed to identify the smallest detail."⁵

128. The NYPD uses illegal surveillance techniques for small demonstrations as well:

Civil Rights attorney Norman Siegel called a press conference Sunday, "outraged" that the NYPD was taking photographs of demonstrators at last Thursday's school closing protest in front of Mayor Bloomberg's house. He was responding to a story posted by the Voice last Friday, in which our video shows NYPD personnel taking photographs inside and from the roof of the Rudolf Steiner school, adjacent to Mayor Bloomberg's residence. Siegel believes the video shows the NYPD violating the Handschu Agreement, the result of the landmark court case in which a group of

⁵ "Who's Watching?: Video Camera Surveillance in New York City and the Need for Public Oversight". The New York Civil Liberties Union, Fall 2006.

activists successfully sued New York City for using the NYPD to intimidate demonstrators and suppress free speech.⁶

129. In the case at hand, the plaintiffs made a mistake like that of the Yes Men protestors near the News Corp. building: they sought to protest the political activities of right-wing billionaire David Koch within sight of a building that Mr. Koch paid \$100 million to have his name affixed to.

130. Like the Yes Men, they deployed a small group of protestors and used a satirical message to make their political point.

131. As with the Yes Men incident, the NYPD --- acting on the billionaire's behalf --- found the satirical message criminally unfunny.

132. Finally -- as with the Yes Men -- police surveillance of the plaintiffs' protected First Amendment activity began well before the police swooped in to make their unlawful arrests.

133. The similarity of these two events shows a pattern and practice of NYPD surveillance of even the tiniest protests espousing a left-wing message.

134. This pattern and practice must stop.

135. Peaceful protest is one of the most basic rights of every American.

136. Unjustified suppression of such protest strikes a blow to the heart of what this country is about, and imperils our continued enjoyment of liberty.

137. Accordingly, the plaintiffs seek vindication of their rights by this honorable Court.

⁶ Thrasher, Steven. "Voice Video Shows NYPD Snapping Photos of School Demonstrators at Mayor Bloomberg's House -- Protestors Call It A Legal No-No," The Village Voice, January 25, 2010.

United States of America, and in violation of 42 U.S.C. § 1983.

States by the First, Fourth, Fifth, and Fourteenth Amendments to the Constitution of the

WILSON of the rights, privileges and immunities guaranteed to citizens of the United

OFFICER DEFENDANTS") deprived Plaintiffs SAMANTHA CORBIN and ROBIN

POLICE OFFICERS 1-9 (such individual defendants, collectively, the "POLICE

Defendant Captain CHRISTOPHER MCCORMACK, and Defendants JOHN DOE

employees, including but not limited to Defendant Police Officer ALAN SCHLISSEL,

140. Defendant THE CITY OF NEW YORK and its agents, servants and

force and effect as if fully set forth herein.

and recite each and every allegation contained in the above paragraphs with the same

139. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate

DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983
AGAINST DEFENDANT THE CITY OF NEW YORK, POLICE OFFICER ALAN
SCHLISSEL, POLICE CAPTAIN CHRISTOPHER MCCORMACK, AND JOHN
DOE POLICE OFFICERS 1-9

FIRST CLAIM FOR RELIEF

FEDERAL CLAIMS

reference into this pleading.

Brothers, are set forth in the appendix to this complaint and hereby incorporated by

CITY OF NEW YORK and its police officers, as well as information of the KOCH

of the aforesaid constitutionally-violative customs, policies and practices of Defendant

138. Further information regarding the commonality, background and existence

141. All of the aforementioned acts of the Defendant THE CITY OF NEW YORK and its agents, servants and employees, including but not limited to Defendant Police Officer ALAN SCHLISSEL, Defendant Captain CHRISTOPHER MCCORMACK, and Defendants JOHN DOE POLICE OFFICERS 1-9 were carried out under the color of state law.

142. The acts complained of were carried out by Defendant Police Officer ALAN SCHLISSEL, Defendant Captain CHRISTOPHER MCCORMACK, and Defendants JOHN DOE POLICE OFFICERS 1-9 in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

143. The acts complained of were carried out by Defendant Police Officer ALAN SCHLISSEL, Defendant Captain CHRISTOPHER MCCORMACK, and Defendants JOHN DOE POLICE OFFICERS 1-9 in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

144. Defendant Police Officer ALAN SCHLISSEL, Defendant Captain CHRISTOPHER MCCORMACK, and Defendants JOHN DOE POLICE OFFICERS 1-9, and Defendant THE CITY OF NEW YORK, collectively and individually, while acting under color of state law, engaged in Constitutionally-violative conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

145. As a result of the above constitutionally impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries,

violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to their reputation and standing within their community.

146. As a result of Defendants' impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON demand judgment against Defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF

EXCESSIVE USE OF FORCE UNDER 42 U.S.C. §1983 AGAINST DEFENDANT
POLICE CAPTAIN CHRISTOPHER MCCORMACK

147. Plaintiff SAMANTHA CORBIN repeats, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

148. When Plaintiff SAMANTHA CORBIN was arrested, Defendant Police Defendant Captain CHRISTOPHER MCCORMACK and Defendant THE CITY OF NEW YORK used excessive force upon Plaintiff SAMANTHA CORBIN in arresting her.

149. Defendant Captain CHRISTOPHER MCCORMACK grabbed Plaintiff SAMANTHA CORBIN from behind without warning, and pushed her to the ground.

150. The circumstances presented to Defendant Captain CHRISTOPHER MCCORMACK at that time did not support any of the above applications of force on Plaintiffs SAMANTHA CORBIN.

151. Plaintiffs SAMANTHA CORBIN was subjected to excessive force and were assaulted by Defendant Captain CHRISTOPHER MCCORMACK, in violation of

her rights as guaranteed under the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. §1983.

152. As a result of the above constitutionally impermissible conduct, Plaintiff SAMANTHA CORBIN was caused to suffer personal injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, and other damages.

153. As a result of Defendants' impermissible conduct, Plaintiff SAMANTHA CORBIN demand judgment against Defendants in a sum of money to be determined at trial.

THIRD CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. §1983 AGAINST DEFENDANT THE CITY OF NEW YORK, POLICE OFFICER ALAN SCHLISSEL, POLICE CAPTAIN CHRISTOPHER MCCORMACK, AND JOHN DOE POLICE OFFICERS 1-9

154. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

155. As a result of the aforesaid conduct by the Defendants THE CITY OF NEW YORK, Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were subjected to illegal, improper and false arrest by the defendants without probable cause.

156. All of the aforementioned acts of the Defendants THE CITY OF NEW YORK, Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9, and their agents, servants and employees,

were carried out under the color of state and federal law and in violation of 42 U.S.C. § 1983.

157. The Constitutionally-violative acts complained of were carried out by the aforementioned Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 while acting under state law, in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department.

158. As a result of the above constitutionally impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to their reputation and standing within their community.

159. As a result of the Defendants' impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON demand judgment against Defendants in a sum of money to be determined at trial.

FOURTH CLAIM FOR RELIEF

MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. §1983 AGAINST DEFENDANT THE CITY OF NEW YORK, POLICE OFFICER ALAN SCHLISSEL, POLICE CAPTAIN CHRISTOPHER MCCORMACK, AND JOHN DOE POLICE OFFICERS 1-9

160. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

161. As a result of the aforesaid conduct by the Defendants THE CITY OF NEW YORK, Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were subjected to illegal, improper and false arrest by the defendants without probable cause.

162. The Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 instigated and issued legal process to place SAMANTHA CORBIN and ROBIN WILSON under arrest.

163. The Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 arrested SAMANTHA CORBIN and ROBIN WILSON in order to obtain collateral objectives outside the legitimate ends of the legal process.

164. These collateral objectives outside the legitimate ends of the legal process include but are not limited to: arrest quotas, the personal satisfaction(s) and/or subjective sense(s) of vindication of Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 for SAMANTHA CORBIN and ROBIN WILSON's putative lack of respect for Defendant POLICE OFFICERS and/or their authority; and the desire of Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 to suppress the political message of SAMANTHA CORBIN and ROBIN WILSON.

165. The Defendants THE CITY OF NEW YORK, Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE

OFFICERS 1-9 acted with intent to do harm to Plaintiffs SAMANTHA CORBIN and ROBIN WILSON without excuse or justification.

166. All of the aforementioned acts of the Defendants THE CITY OF NEW YORK, Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9, and their agents, servants and employees, were carried out under the color of state and federal law and in violation of 42 U.S.C. § 1983.

167. The Constitutionally-violative acts complained of were carried out by the aforementioned Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 while acting under state law, in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department.

168. As a result of the aforementioned conduct of the Defendants THE CITY OF NEW YORK, Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON's constitutional rights were violated.

169. As a result of the above constitutionally impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to their reputation and standing within their community.

CORBIN and ROBIN WILSON.

involved in the initiation of criminal proceedings against Plaintiffs SAMANTHA

MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 were directly and actively

175. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER

evidence from the District Attorney.

MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 withheld exculpatory

174. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER

full statement of facts to the District Attorney.

MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 did not make a complete and

173. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER

evidence before the District Attorney.

MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 misrepresented and falsified

172. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER

force and effect as if fully set forth herein.

and recite each and every allegation contained in the above paragraphs with the same

171. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate

MALICIOUS PROSECUTION UNDER 42 U.S.C. §1983 AGAINST
DEFENDANT THE CITY OF NEW YORK, POLICE OFFICER ALAN
SCHLISSEL, POLICE CAPTAIN CHRISTOPHER MCCORMACK,
AND JOHN DOE POLICE OFFICERS 1-9

FIFTH CLAIM FOR RELIEF

sum of money to be determined at trial.

SAMANTHA CORBIN and ROBIN WILSON demand judgment against Defendants in a

170. As a result of the Defendants' impermissible conduct, Plaintiffs

176. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 lacked probable cause to initiate criminal proceedings against Plaintiffs SAMANTHA CORBIN and ROBIN WILSON.

177. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 acted with malice in initiating criminal proceedings against Plaintiffs SAMANTHA CORBIN and ROBIN WILSON.

178. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 misrepresented and falsified evidence throughout all phases of the criminal proceeding.

179. Notwithstanding the perjurious conduct of the Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9, the criminal proceedings were terminated in favor of Plaintiffs SAMANTHA CORBIN and ROBIN WILSON.

180. As a result of the above constitutionally impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to their reputation and standing within their community.

181. As a result of the Defendants' impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON demand judgment against Defendants in a sum of money to be determined at trial.

SIXTH CLAIM FOR RELIEF

RETALIATION FOR FIRST AMENDMENT PROTECTED EXPRESSION
UNDER 42 U.S.C. §1983 AGAINST
DEFENDANT THE CITY OF NEW YORK, POLICE OFFICER ALAN
SCHLISSEL, POLICE CAPTAIN CHRISTOPHER MCCORMACK,
AND JOHN DOE POLICE OFFICERS 1-9

182. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

183. At all relevant times, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON engaged in peaceable assembly with a small group of like-minded individuals for political purposes.

184. At all relevant times, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON engaged in peaceable assembly with a small group of like-minded individuals in order to engage in political speech.

185. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 initiated contact with Plaintiffs SAMANTHA CORBIN and ROBIN WILSON because these wished to prevent Plaintiffs SAMANTHA CORBIN and ROBIN WILSON from engaging in peaceable assembly for political purposes.

186. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 initiated contact with Plaintiffs SAMANTHA CORBIN and ROBIN WILSON because these wished to prevent Plaintiffs SAMANTHA CORBIN and ROBIN WILSON from engaging in political speech.

187. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 took unlawful adverse action against Plaintiffs SAMANTHA CORBIN and ROBIN WILSON precisely because they were engaged in constitutionally protected speech and assembly activities.

188. Among other unlawful retaliatory acts, Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 unlawfully ordered Plaintiffs SAMANTHA CORBIN and ROBIN WILSON and the small group of like-minded individuals with whom they assembled to separate and disperse from Central Park.

189. Among other unlawful retaliatory acts, Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 unlawfully ordered Plaintiffs SAMANTHA CORBIN and ROBIN WILSON and the small group of like-minded individuals with whom they assembled to separate and disperse from Columbus Circle.

190. Among other unlawful retaliatory acts, Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 unlawfully arrested Plaintiffs SAMANTHA CORBIN and ROBIN WILSON shortly after they engaged in protected political speech in the vicinity of Lincoln Center.

191. Among other unlawful retaliatory acts, Defendant Captain CHRISTOPHER MCCORMACK took unlawful adverse action against Plaintiff SAMANTHA CORBIN by using wrongful and unjustified force upon Plaintiff.

192. All of the aforementioned acts of the Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9, and their agents, servants and employees, were carried out under the color of state and federal law and in violation of 42 U.S.C. § 1983.

193. The Constitutionally-violative acts complained of were carried out by the aforementioned Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 while acting under state law, in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department.

194. As a result of the aforementioned conduct of the Defendants THE CITY OF NEW YORK, Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON's constitutional rights were violated.

195. Plaintiff also incorporates herein by reference the contents of the appendix attached hereto.

196. As a result of the above constitutionally impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to their reputation and standing within their community.

substantially contributed to the circumstances within which the plaintiffs' rights were violated by their affirmative conduct.

202. All of the aforementioned acts of the Defendants THE CITY OF NEW YORK, Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9, and their agents, servants and employees, were carried out under the color of state and federal law and in violation of 42 U.S.C. § 1983.

203. The Constitutionally-violative acts complained of were carried out by the aforementioned Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 while acting under state law, in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department.

204. Plaintiff also incorporates herein by reference the contents of the appendix attached hereto.

205. As a result of the aforementioned conduct of the defendants, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON's constitutional rights were violated.

206. As a result of the above constitutionally impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON was caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, and other damages.

207. As a result of Defendants' impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON demands judgment against Defendants in a sum of money to be determined at trial.

EIGHTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER MONELL ARISING FROM
UNCONSTITUTIONAL POLICIES AND CUSTOMS UNDER 42 U.S.C. §1983
AGAINST DEFENDANT THE CITY OF NEW YORK

208. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

209. Defendant THE CITY OF NEW YORK and the NYPD established an official policy directing and promoting the use of illegal surveillance on citizens engaged in political speech.

210. Such surveillance was conducted without reasonable suspicion or probable cause to believe such citizens were engaged in illegal activity.

211. Such surveillance was conducted to intimidate these citizens and to dissuade them from their speech activity.

212. Defendant THE CITY OF NEW YORK and the NYPD established an official policy directing and promoting the use of wrongful arrests of citizens engaged in political speech.

213. Such wrongful arrests were conducted without reasonable suspicion or probable cause to believe such citizens were engaged in illegal activity.

214. Such wrongful arrests were conducted, in part, to intimidate these citizens and to dissuade them from their speech activity.

215. Such wrongful arrests and surveillance especially targeted speakers espousing left-of-center views.

216. Such wrongful arrests and surveillance especially targeted speakers who spoke out in opposition to rich and powerful right wing figures such as David Koch, Rupert Murdoch, and News Corporation.

217. Defendant THE CITY OF NEW YORK and the NYPD established an official policy directing and promoting the wrongful arrests and surveillance of citizens engaged in political speech.

218. The wrongful use of such wrongful arrests and surveillance is a widespread custom and practice so permanent or well settled so as to constitute a 'custom or usage' of Defendant THE CITY OF NEW YORK and the NYPD.

219. Defendant THE CITY OF NEW YORK and the NYPD failed to train their employees in when and how surveillance of persons engaged in political speech is legal and warranted.

220. Defendant THE CITY OF NEW YORK and the NYPD failed to train their employees in when the arrest of persons engaged in political speech is legal and warranted.

221. Defendant THE CITY OF NEW YORK and the NYPD impliedly or tacitly approved, authorized or encouraged such wrongful conduct by its employees.

222. Defendant THE CITY OF NEW YORK and the NYPD had notice of such wrongful conduct but repeatedly failed to make any meaningful investigation into charges that its agents were violating citizens' constitutional rights.

223. Defendant THE CITY OF NEW YORK and the NYPD were deliberately indifferent to such wrongful conduct by its employees.

224. The wrongful conduct of the POLICE OFFICER DEFENDANTS was performed under color of law.

225. The wrongful conduct of the POLICE OFFICER DEFENDANTS was performed in their capacity as police officers and officials, with all the actual and/or apparent authority attendant thereto.

226. The acts complained of were carried out by the aforementioned individual POLICE OFFICER DEFENDANTS in their capacity as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the CITY OF NEW YORK and the NYPD, all under the supervision of ranking officers of said department.

227. The aforementioned customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- ◆ Unlawful surveillance of citizens engaged in political activity and protected speech and assembly;
- ◆ Unlawful interference in citizens' political activity and protected speech and assembly;
- ◆ Differential treatment of citizens engaged in political activity and protected speech and assembly based on the citizens' political viewpoint; and

- ◆ The use of unjustified force, false arrests, and unjustified prosecutions in order to deter, frustrate, and prevent citizens' lawful participation in political activity and protected speech and assembly,

228. The aforementioned customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department include, but are not limited to, the following unconstitutional practices relating to police practices generally:

- ◆ Permitting, encouraging, and failing to punish excessive force;
- ◆ Permitting, encouraging, and failing to punish false arrests;
- ◆ Permitting, encouraging and failing to punish unjustified searches and seizures of persons and property;
- ◆ Permitting, encouraging and failing to punish false testimony by officers of the NYPD when testifying in court, swearing out criminal complaints, and swearing out affidavits in support of search warrants;

229. As a result of the aforementioned conduct of the Defendant CITY OF NEW YORK and the individual POLICE OFFICER DEFENDANTS, the constitutional rights of Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were violated.

230. As a result of the above constitutionally impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, and damage to their reputation and standing within their community, and other damages.

231. As a result of Defendants' impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON demand judgment against Defendants in a sum of money to be determined at trial.

PENDENT STATE CLAIMS

NINTH CLAIM FOR RELIEF

FALSE ARREST AGAINST DEFENDANTS POLICE OFFICER ALAN SCHLISSEL, POLICE CAPTAIN CHRISTOPHER MCCORMACK, AND JOHN DOE POLICE OFFICERS 1-9

232. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

233. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 arrested Plaintiffs SAMANTHA CORBIN and ROBIN WILSON in the absence of probable cause and without warrants.

234. As a result of the aforesaid conduct by defendants, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were subjected to illegal, improper and false arrests by the defendant Police Officers and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

235. The aforesaid actions by the defendants constituted deprivations of Plaintiffs SAMANTHA CORBIN and ROBIN WILSON's rights.

236. As a result of the above unlawful conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries, violation of their

conscious of said confinement and did not consent to same.

241. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were each

criminal proceedings.

falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in

false arrests by the defendant Police Officers and taken into custody and caused to be

SAMANTHA CORBIN and ROBIN WILSON were subjected to illegal, improper and

240. As a result of the aforesaid conduct by defendants, Plaintiffs

POLICE OFFICERS 1-9.

ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE

physical restraint due to the aforesaid unlawful conduct by Defendants Police Officer

fear for their safety, and they were humiliated and subjected to handcuffing and other

imprisoned, their liberty was restricted for an extended period of time, they were put in

239. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were falsely

force and effect as if fully set forth herein.

and recite each and every allegation contained in the above paragraphs with the same

238. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate

FALSE ARREST AGAINST DEFENDANTS POLICE OFFICER ALAN
SCHLISSEL, POLICE CAPTAIN CHRISTOPHER MCCORMACK,
AND JOHN DOE POLICE OFFICERS 1-9

TENTH CLAIM FOR RELIEF

determined at trial.

ROBIN WILSON demand judgment against Defendants in a sum of money to be

237. As a result of the foregoing, Plaintiffs SAMANTHA CORBIN and

reputation and standing within their community, and other damages.

civil rights, emotional distress, anguish, anxiety, fear, humiliation, and damage to their

242. The confinements of Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were without probable cause and were not otherwise privilege

243. The aforesaid actions by the defendants constituted deprivations of Plaintiffs SAMANTHA CORBIN and ROBIN WILSON's rights.

244. As a result of the above unlawful conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, and damage to their reputation and standing within their community, and other damages.

245. As a result of the foregoing, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON demand judgment against Defendants in a sum of money to be determined at trial.

ELEVENTH CLAIM FOR RELIEF

MALICIOUS ABUSE OF PROCESS AGAINST DEFENDANTS POLICE OFFICER
ALAN SCHLISSEL, POLICE CAPTAIN CHRISTOPHER MCCORMACK,
AND JOHN DOE POLICE OFFICERS 1-9

246. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

247. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 issued legal process to place Plaintiffs SAMANTHA CORBIN and ROBIN WILSON under arrest.

248. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 caused to be issued legal process to place Plaintiffs SAMANTHA CORBIN and ROBIN WILSON under arrest.

249. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 arrested Plaintiffs SAMANTHA CORBIN and ROBIN WILSON to obtain a collateral objective outside the legitimate ends of the legal process.

250. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 caused Plaintiffs SAMANTHA CORBIN and ROBIN WILSON to be arrested to obtain a collateral objective outside the legitimate ends of the legal process.

251. Upon information and belief, Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 caused Plaintiffs SAMANTHA CORBIN and ROBIN WILSON to be arrested in order to satisfy their desire to prevent, hinder the plaintiffs from engaging in political speech and assembly, and in order to punish the plaintiffs for having engaged in such speech and assembly.

252. Upon information and belief, Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 caused Plaintiffs SAMANTHA CORBIN and ROBIN WILSON to be arrested because they felt disrespected by plaintiffs' continued assertion of their First Amendment rights.

253. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 caused Plaintiffs SAMANTHA CORBIN and ROBIN WILSON to be arrested acted with intent to do

harm to Plaintiffs SAMANTHA CORBIN and ROBIN WILSON, without excuse or justification.

254. As a result of the above unlawful conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, and damage to their reputation and standing within their community, and other damages.

255. As a result of the foregoing, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON demand judgment against Defendants in a sum of money to be determined at trial.

TWELFTH CLAIM FOR RELIEF

BATTERY AGAINST DEFENDANTS POLICE OFFICER ALAN SCHLISSEL,
POLICE CAPTAIN CHRISTOPHER MCCORMACK,
AND JOHN DOE POLICE OFFICERS 1-9

256. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

257. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were subjected to battery by Defendants.

258. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 touched Plaintiffs SAMANTHA CORBIN and ROBIN WILSON without their consent.

259. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 touched Plaintiffs SAMANTHA CORBIN and ROBIN WILSON in a manner that was offensive to them.

260. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 touched Plaintiffs SAMANTHA CORBIN and ROBIN WILSON in a manner intended to arouse apprehension.

261. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 did so without privilege or consent from Plaintiffs SAMANTHA CORBIN and ROBIN WILSON.

262. The circumstances presented to Defendants at that time did not support any of the above applications of force on Plaintiffs SAMANTHA CORBIN and ROBIN WILSON.

263. As a result of the above battery, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON was caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, and other irreparable damage to his life.

264. As a result of Defendants' impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON demands judgment against Defendants in a sum of money to be determined at trial.

THIRTEENTH CLAIM FOR RELIEF

ASSAULT AGAINST DEFENDANTS POLICE OFFICER ALAN SCHLISSEL,
POLICE CAPTAIN CHRISTOPHER MCCORMACK,
AND JOHN DOE POLICE OFFICERS 1-9

265. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

266. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 conduct threatened imminent, offensive, and harmful contact with Plaintiffs SAMANTHA CORBIN and ROBIN WILSON.

267. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 aforementioned conduct placed Plaintiffs SAMANTHA CORBIN and ROBIN WILSON in apprehension of imminent harmful and offensive bodily contact.

268. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 engaged in the aforementioned conduct intentionally.

269. A reasonable person in the position of the Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 under like circumstances would have known or been substantially certain that the aforementioned conduct would place Plaintiffs SAMANTHA CORBIN and ROBIN WILSON in apprehension of imminent harmful and offensive bodily contact.

270. As a result of the above conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, and other irreparable damage to his life.

271. As a result of Defendants' impermissible conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON demands judgment against Defendants in a sum of money to be determined at trial.

FOURTEENTH CLAIM FOR RELIEF
NEGLIGENCE AGAINST DEFENDANTS POLICE OFFICER ALAN SCHLISSEL,
POLICE CAPTAIN CHRISTOPHER MCCORMACK,
AND JOHN DOE POLICE OFFICERS 1-9

272. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

273. Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 employed physical force in dealing with Plaintiff SAMANTHA CORBIN.

274. In employing the aforementioned physical force, Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 did not exercise that degree of care which would reasonably be required of a police officer under similar circumstances.

275. As a direct and proximate result of the failure of Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 to exercise due care, Plaintiff SAMANTHA CORBIN was caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, and other irreparable damage to his life.

276. As a result of Defendants' impermissible conduct, Plaintiff SAMANTHA CORBIN demands judgment against Defendants in a sum of money to be determined at trial.

FIFTEENTH CLAIM FOR RELIEF

NEGLIGENT HIRING AND RETENTION AGAINST
DEFENDANT THE CITY OF NEW YORK

277. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

278. Upon information and belief, Defendant THE CITY OF NEW YORK failed to use reasonable care in the hiring and retention of the aforesaid Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 who conducted and participated in foregoing wrongful conduct.

279. Defendant City of New York knew, or should have known in the exercise of reasonable care, the propensities of Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 to engage in the wrongful conduct heretofore alleged in this Complaint.

280. As a result of the above unlawful conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, and damage to their reputation and standing within their community, and other damages.

281. As a result of the foregoing, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON demand judgment against Defendants in a sum of money to be determined at trial.

SIXTEENTH CLAIM FOR RELIEF

NEGLIGENT TRAINING AND SUPERVISION AGAINST
DEFENDANT THE CITY OF NEW YORK

282. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

283. Upon information and belief the Defendant THE CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid Defendants Police Officer ALAN SCHLISSEL, Captain CHRISTOPHER MCCORMACK, and JOHN DOE POLICE OFFICERS 1-9 who conducted and participated in the arrest and unlawful searches, assaults, and acts of battery against Plaintiffs SAMANTHA CORBIN and ROBIN WILSON.

284. As a result of the above unlawful conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, and damage to their reputation and standing within their community, and other damages.

285. As a result of the foregoing, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON demand judgment against Defendants in a sum of money to be determined at trial.

SEVENTEENTH CLAIM FOR RELIEF

NEGLIGENT TRAINING AND SUPERVISION AGAINST
DEFENDANT POLICE CAPTAIN CHRISTOPHER MCCORMACK 1

286. Plaintiffs SAMANTHA CORBIN and ROBIN WILSON repeat, reiterate and reallege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

287. Upon information and belief the Defendant Captain CHRISTOPHER MCCORMACK failed to use reasonable care in the training and supervision of the

aforesaid Defendants Police Officer ALAN SCHLISSEL and JOHN DOE POLICE OFFICERS 1-9 who conducted and participated in the forgoing unlawful conduct against Plaintiffs SAMANTHA CORBIN and ROBIN WILSON.

288. As a result of the above unlawful conduct, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON were caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, and damage to their reputation and standing within their community, and other damages.

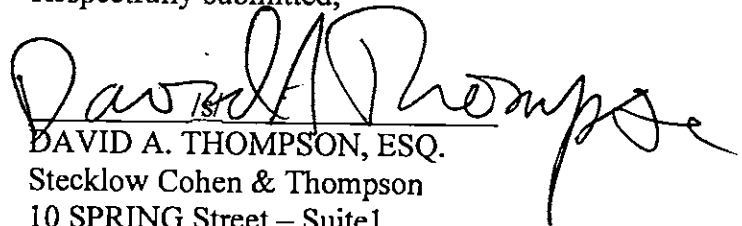
289. As a result of the foregoing, Plaintiffs SAMANTHA CORBIN and ROBIN WILSON demand judgment against Defendant Captain CHRISTOPHER MCCORMACK in a sum of money to be determined at trial.

WHEREFORE and in light of the foregoing, it is respectfully requested that the Court assume jurisdiction and:

- [a] Invoke pendent party and pendent claim jurisdiction.
- [b] Award appropriate compensatory and punitive damages.
- [c] Empanel a jury.
- [d] Award attorney's fees and costs.
- [e] Award such other and further relief as the Court deems to be proper and in the interests of justice.

DATED: New York, New York
July 9, 2012

Respectfully submitted,



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APPENDIX

1. The plaintiffs sought to protest David Koch's financial sponsorship and control of supposedly "grassroots" movements like the Tea Party, which, under the manipulation of David Koch and others like him, advocates low-tax, low-regulation, low-safety-net policies that primarily benefit billionaires like Koch and their corporations.

2. David H. Koch uses a fleet of political action committees, advisors, and corporations, backed by billions of dollars, to put his personal concerns front and center on the national stage.

3. The *New Yorker* profiled David Koch's entanglement with the Tea Party in 2010:

The anti-government fervor infusing the 2010 elections represents a political triumph for the Kochs. By giving money to "educate," fund, and organize Tea Party protesters, they have helped turn their private agenda into a mass movement. Bruce Bartlett, a conservative economist and a historian, who once worked at the National Center for Policy Analysis, a Dallas-based think tank that the Kochs fund, said, "The problem with the whole libertarian movement is that it's been all chiefs and no Indians. There haven't been any actual people, like voters, who give a crap about it. So the problem for the Kochs has been trying to create a movement." With the emergence of the Tea Party, he said, "everyone suddenly sees that for the first time there are Indians out there—people who can provide real ideological power." The Kochs, he said, are "trying to shape and control and channel the populist uprising into their own policies."

A Republican campaign consultant who has done research on behalf of Charles and David Koch said of the Tea Party, "The Koch brothers gave the money that founded it. It's like they put the seeds in the ground. Then the rainstorm comes, and the frogs come out of the mud—and they're our candidates!"

The Republican campaign consultant said of the family's political activities, "To call them under the radar is an understatement. They are underground!" Another former Koch adviser said, "They're smart. This right-wing, redneck stuff works for them. They see this as a way to get things done without getting dirty themselves." Rob Stein, a Democratic political strategist who has studied the conservative movement's finances, said that the Kochs are "at the epicenter of the anti-Obama movement. But it's not just about Obama. They would have done the same to Hillary

Clinton. They did the same with Bill Clinton. They are out to destroy progressivism.”¹

4. The policies David H. Koch wants for this country include the abolishment of Social Security, welfare, and minimum wage laws – policies that are utterly antithetical to the wellbeing of the people. Only by means of his billion-dollar propaganda machine has David H. Koch succeeding in convincing some of the ordinary Americans who are protected by these programs to join the Tea Party in agitating for their destruction.

5. Because of the success of the policies that David H. Koch wants to destroy, most Americans have forgotten what the life of the ordinary American worker was like before Social Security, welfare, and minimum wage laws existed.

6. By way of recalling this sad history, Plaintiffs refer to the January 29, 1916 issue of the magazine The New Republic, containing an article describing the how workers lived at the time of the Youngstown Steel strike.²

7. The article describes the view towards their workers taken by the men that then occupied the seats of corporate power now held by men like David H. Koch: “President J.A. Campbell of the Youngstown Sheet & Company ... asserted that competition must govern wages even though it should force them below the cost of living.”

8. The author also described the conditions brought about by these “competitive wages”:

[H]ousing conditions are wretched, infant mortality excessive, and conditions in the districts occupied by workmen's families insanitary in the highest degree, with filth, open garbage and dry privies abounding.

¹ Mayer, Jane “Covert Operations: The billionaire brothers who are waging a war against Obama.” The New Yorker, Aug. 30, 2010.

² George West, “Youngstown,” The New Republic, Vol. 5, no. 65, January 29, 1916.

9. Ironically, the very wretchedness of workers' lives was part of what protected the steel barons' empire – the author observed that “hunger and fear of starvation” had previously kept the workers from “rebellion.”

10. This tragic America of the past is David H. Koch's vision for the America of the future.

11. Meanwhile, among David H. Koch's contributions to the nation's welfare has been to secretly and illegally trade with Iran despite a U.S. trade ban.³

12. As reported by ABC News, one such illegal transaction took place on January 29, 2003, “the day after President Bush told Congress in his State of the Union message that Iran continued to be an enemy of the U.S. that ‘represses its people, pursues weapons of mass destruction and supports terror.’”⁴

13. Bloomberg news reported on what it called “Koch Method”, Koch Industries' criminal method of doing business:

Koch Industries units have ... rigged prices with competitors, lied to regulators and repeatedly run afoul of environmental regulations, resulting in five criminal convictions since 1999 in the U.S. and Canada. From 1999 through 2003, Koch Industries was assessed more than \$400 million in fines, penalties and judgments. In December 1999, a civil jury found that Koch Industries had taken oil it didn't pay for from federal land by mismeasuring the amount of crude it was extracting. Koch paid a \$25 million settlement to the U.S.⁵

³ Asjylyn Loder and David Evans, “Koch Brothers Flout Law Getting Richer With Secret Iran Sales,” Bloomberg Markets Magazine, Oct. 3, 2011, available at <http://www.bloomberg.com/news/2011-10-02/koch-brothers-flout-law-getting-richer-with-secret-iran-sales.html>

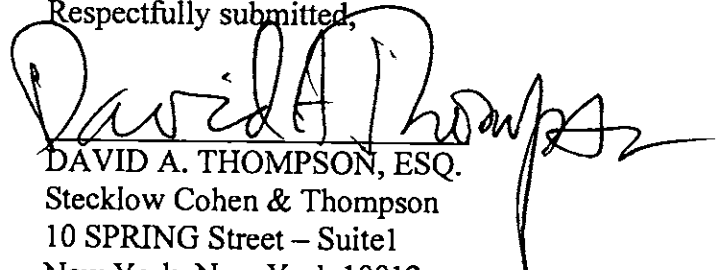
⁴ Brian Ross and Cindy Galli, “Report: ‘Secret Sins’ of Koch Industries,” ABC News, Oct. 7, 2011, available at http://abcnews.go.com/Blotter/koch-industries-report-reveals-secret-sins_story?id=14676652#.T1o-C5dSSDC.

⁵ Asjylyn Loder and David Evans, “Koch Brothers Flout Law Getting Richer With Secret Iran Sales,” Bloomberg Markets Magazine, Oct. 3, 2011, available at <http://www.bloomberg.com/news/2011-10-02/koch-brothers-flout-law-getting-richer-with-secret-iran-sales.html>

14. In 2004, when this Country was in debate about whether to enter a war, the champions of the war, the Republicans and Conservatives, held their convention in New York City.
15. The champions of the war were in turn championed by the NYPD.
16. In effect, the NYPD acted as a delegate-at-large to the Republican National Convention.
17. These episodes were instances in which thousands of people wished to be heard. The vital issues being debated were known at that time to represent inflection points in the history of our nation. Subsequent events have confirmed that free debate at those moments was necessary and vital to our future.
18. The NYPD's approach to these protests begs the question: if peaceable assembly for the purpose of political debate is not acceptable when the nation's future, its security, and its honor are in the balance, when is peaceable assembly acceptable?
19. The NYPD's answer to this question is: "When we say so (and we generally don't say so)."

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